



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 23RD REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD AT THE SESSION HALL (LEGISLATIVE HALL) IN BARANGAY PAMORANGON, DAET, CAMARINES NORTE ON THE 21ST DAY OF JUNE, 2021 AT 9:00 A.M.

PRESENT:

HON. ROSA MIA L. KING

Municipal Vice-Mayor/ Presiding Officer

MUNICIPAL COUNCILORS

HON. MA. ELIZA H. LLOVIT

HON. TOMASITO SANTIAGO C. TURINGAN

HON. APOLONIO B. PANONG

HON. FELIX C. ABAÑO

HON. WILLIAM CARLO R. AVILA

HON. MARLON T. BANDELARIA

HON. ROSSANO C. VALENCIA

HON. NESTOR F. DALIDA

HON. PEDRO S. MUSA – LNB

HON. JUDY ROSE T. GALLARDO

ABSENT:

NONE

Resolution No. 222-2021

RESOLUTION ADOPTING AN ORDINANCE ESTABLISHING GUIDELINES IN THE CONDUCT OF COMMUNITY PANTRY OR ANY SIMILAR ACTIVITY IN THE MUNICIPALITY OF DAET, CAMARINES NORTE DURING THE PERIOD OF PUBLIC HEALTH EMERGENCY

WHEREAS, the existence of threat of COVID-19 pandemic caused the issuance of Proclamation No. 1021 dated September 16, 2020 by President Rodrigo Roa Duterte extending the period of the State of Calamity throughout the Philippines for a period of one (1) year, effective September 13, 2020 to September 12, 2021, unless earlier lifted or extended as circumstances may warrant;

WHEREAS, the Proclamation No. 1021 enjoined all government agencies and LGUs to continue rendering full assistance to and cooperation with each other and mobilize the necessary resources to undertake critical, urgent, and appropriate disaster response aid and measures in a timely manner to curtail and eliminate the threat of COVID-19;

WHEREAS, joint efforts of the government and the public is significant to achieve the objective of measures against the spread of COVID-19 through observance of established health and safety protocol, among others;

WHEREAS, during the period of public health emergency due to the COVID-19 pandemic, a number of citizens have set up "community pantries", or temporary stalls providing free food to needy persons in various parts of the country;

WHEREAS, such endeavors is wholeheartedly recognized as an exercise promoting the spirit of civic-mindedness or *bayanihan* and help ease the economic difficulties related to the pandemic, however, these pantries should be mindful of the need to comply with minimum health protocols, as well as ensure sanitation and orderliness in their surroundings;

WHEREAS, the Local Government Code of 1991 empowers the sanggunian to enact ordinances to ensure the efficient and effective delivery of basic services and facilities as provided for under Section 17 of the Code, and in addition to said services and facilities, shall approve measures and adopt quarantine regulations to prevent the introduction and spread of diseases;

WHEREAS, the LGU Daet Incident Management Team (IMT) against COVID-19 operation recommended the guidelines for the conduct of community pantry in this municipality, hence, this legislation;

NOW THEREFORE, after due deliberation, on motion of Councilor Felix C. Abaño, with Councilor Ma. Eliza H. Llovit as co-movant, seconded by Councilors Apolonio B. Panong, Rossano C. Valencia, Tomasito Santiago C. Turingan, Nestor F. Dalida and Judy Rose T. Gallardo;

BE IT RESOLVED, as it is hereby resolved, to adopt:

MUNICIPAL ORDINANCE NO. 419-2021

AN ORDINANCE ESTABLISHING GUIDELINES IN THE CONDUCT OF COMMUNITY PANTRY OR ANY SIMILAR ACTIVITY IN THE MUNICIPALITY OF DAET, CAMARINES NORTE DURING THE PERIOD OF PUBLIC HEALTH EMERGENCY

BE IT ORDAINED, by the Honorable Sangguniang Bayan of Daet, that:

SECTION 1. TITLE. This Ordinance shall also be known as "Ordinance for the Conduct of Community Pantry in Daet, Camarines Norte during period of Public Health Emergency".

SECTION 2. DEFINITION OF TERMS. The following terms as used in this Ordinance shall mean as follows:

- a. **Community Pantry** – refers to a place in the community where foods/goods are brought to the table for the consumption of citizens for free, it is either stationary or mobile or combination of both;
- b. **Organizer** – refers to an individual or group who conducts the community pantry;
- c. **Patrons** – refers to the one who get the foods/goods offered in the community pantry;
- d. **Queue** – refers to a waiting line, especially of persons.

SECTION 3. SCOPE AND APPLICATION. This Ordinance shall apply during the period of public health emergency to all activities to be conducted in the Municipality of Daet related to community pantry and other similar activity involving setting up of temporary



stalls providing for free food, commodities or other products that may result to gathering of crowd.

SECTION 4. GUIDELINES. Any person, organization or corporation that will conduct community pantry and other similar activity, shall observe the following guidelines:

- a. **Coordination with the Barangay Government.** Any person or group intending to operate a community pantry shall submit written notice to the barangay government where the pantry is located indicating therein the responsible person who shall be accountable for the pantry, who is preferably a resident of the barangay concerned.
- b. The venue of the community pantry must be conducted at the open spaces such as: covered court, outside the house or establishment, and the like, or any place that may be recommended by the barangay government.
- c. The conduct of Mobile or Multiple Community Pantry shall have the same requirements with the stationary community pantry. Coordination with respective barangay is required.
- d. Any food or products to be displayed in the pantry shall be at no cost. As such, the municipal or barangay government shall not require the organizer to pay any service or regulatory fee, provided, that they will observe the guidelines being imposed.
- e. **Health Protocols.** The following health protocol shall be observed:
 - i. Pantry attendants, staff and patrons should wear face masks and face shields. Hence, the **"No Facemask, No Faceshield, No Service"** policy shall be posted at the entrance of the pantry;
 - ii. The organizers and their attendants/staff shall observe minimum health protocols and are required to present a Medical Certificate issued by any government or private physician/doctor. For this purpose, the validity of Medical Certificate shall be two (2) days from the issuance thereof. Further, the certificate shall indicate that the organizer/attendant is not Persons Under Monitoring (PUM) or Persons Under Investigation (PUI) for COVID-19.
 - iii. At least one meter distance among persons in queue shall be maintained;
 - iv. Patrons are prohibited from eating or drinking in the vicinity of the community pantry. All foods and drinks shall be for take-out only. Unless otherwise, the community pantry offers cooked food and drinks, it shall be consumed in a designated area only.
 - v. Prohibit patrons from unnecessary touching or handling items in display;
 - vi. Children restricted to go outside during community quarantine shall not be allowed to roam around in the community pantry.



- f. **Orderliness and Traffic.** The organizer of the pantry and the barangay government shall coordinate regarding reasonable crowd control measures, such as but not limited to the following:

- i. Setting a cut off time for persons in queue;
- ii. Limiting the number of persons to be served in a day, or for certain time periods such as morning or afternoon;
- iii. Using marshal or tanod to enforce health protocols and disperse crowding;
- iv. Delineating locations for queues.

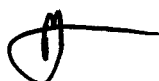
In this regard, the barangay government concerned should provide reasonable assistance to the organizer by assigning a tanod and/or Barangay Health Emergency Response Team (BHERT). The BHERT may provide standby ambulance or medical facilities to the extent available.

The community pantry should avoid blocking any road or sidewalk. The organizer may coordinate with the barangay to minimize disruption to traffic or finding alternative place to relocate the pantry to better serve its beneficiaries, or to accommodate a greater number of persons.

- g. **Time of Operation.** The community pantry may operate from 7:00 a.m. to 5:00 p.m. which will be limited to 2 to 3 hours only.
- h. **Sanitation and Cleanliness.** The organizer of the community pantry shall ensure the maintenance of cleanliness of the vicinity of the venue. Cartons, plastic bags, ecobags or other containers, food scraps and waste must be properly disposed of.
- i. **Food Safety.** The pantry operators shall assume responsibility for food safety. Food or products on display must be fresh or not expired, and no adulterated, spoiled or unsanitary foods shall be distributed in the pantry.
- j. **Fairness.** In light of reports of certain persons exploiting community pantries and taking more than their fair share, organizers are encouraged to adopt a system to mitigate abuse or hoarding, such as but not limited to the following:
- i. Imposition of limit on number of items per person or household;
 - ii. Limiting the patrons to bonafide local residents only;
 - iii. Using points system, stubs or coupons to apportion goods;
 - iv. Limit the use of bag, container, sack or any vessel to pack their goods.

SECTION 5. ENFORCEMENT. The member offices of Municipal Law and Order Cluster, regulatory Departments, and the Barangay Government shall enforce these guidelines. The Daet PNP shall refrain from intervening except in cases manifesting breach of health and safety protocols, peace and order that cannot be controlled by the barangay government.

SECTION 6. PENALTY. Any pantry organizer who did not coordinate with the barangay government shall be deemed sole responsible for any untoward incidents arising from pantry operations.



Any community pantry contravened in the guidelines herein provided shall discontinue or cease the operation of the pantry.

SECTION 7. AUTOMATIC APPLICATION AND TERMINATION. This Ordinance shall be deemed automatically applicable when there is a declaration of state of public health emergency and the government enforces the application of minimum health and safety protocol. It shall be automatically terminated and without effect after when the government ceases to enforce the state of public health emergency.

SECTION 8. REPEALING CLAUSE. All ordinances, executive orders and rules and regulations inconsistent and contradictory with the provision of this Ordinance are hereby repealed, amended or modified accordingly.

SECTION 9. SEPARABILITY CLAUSE. The provisions of this Ordinance are hereby declared separable. In the event that one or more provisions are held illegal or unconstitutional, the validity of the other provisions shall not be affected.

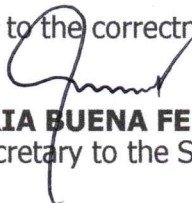
SECTION 10. EFFECTIVITY. This Ordinance shall take effect upon approval.

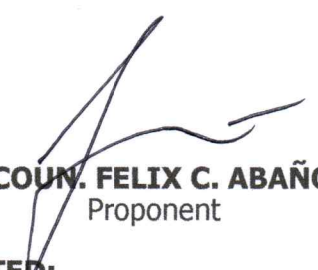
ENACTED.

RESOLVED FURTHER, to furnish copies hereof, the Mayor's Office, the MDRRMO, the Municipal IMT for COVID-19 Operation, the Provincial IMT for COVID-19 Operation, and all others concerned for their information and appropriate action;

CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing:


MARIA BUENA FE ZABALA-LUARES
Secretary to the Sangguniang Bayan


COUN. FELIX C. ABAÑO
Proponent

ATTESTED:


ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA
Municipal Mayor

Date: JUL 05 2021